

24VECV01982 24VECV01982

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV01982 Hearing Date: July 27, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Bryan

Rojo, et al,

Plaintiffs,

v.

American

Honda Motor Co., Inc.

Defendant.

Case Number Department

24VECV01982 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for Attorneys' Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant in the reduced sum of
\$13,848.50.

I.

BACKGROUND

On December 23, 2022,
Plaintiffs Bryan Rojo and Leo Rojo ("Plaintiffs") leased a 2022 Acura MDX (the
"Vehicle"). (Complaint ¶ 8.) The Vehicle was defective. (Complaint ¶ 10.)

On April 30, 2024,
Plaintiffs filed a complaint against Defendants American Honda Motor Co., Inc.
("Defendant") and Does 1 through 10, alleging causes of action for: (1)
violation of Song-Beverly Act - breach of express warranty; (2) violation of
Song-Beverly Act - breach of implied warranty; and (3) violation of the
Song-Beverly Act section 1793.2.

On March 30, 2026,
Plaintiffs filed a notice of settlement of entire case.

On June 10, 2026,
Plaintiffs filed a motion for attorneys' fees (the "Motion"). On July 10, 2026,
Defendant filed an opposition. On July 20, 2026, Plaintiffs filed a reply.

II.

DEFENDANT'S

EXHIBIT A

In
reply, Plaintiff requests the court strike the arguments exclusively found in
Exhibit A attached to Defendant's opposition. (Reply p. 2.)

Exhibit

A summarizes Defendant's specific objections to Plaintiff's billing chart.
(Cabibi Declaration ¶ 5.) The place for legal arguments is in Defendant's
memorandum of points and authorities, not an exhibit attached to the
opposition. Further, the page limit for
responding memorandums in this situation is 15 pages. (Cal. Rules of Court,

rule 3.1113(d).) Defendant filed no application to submit a longer memorandum.
(Cal Rules of Court, rule 3.1113(e).) The court will not consider Exhibit A.

III.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged." (Robertson v. Fleetwood Travel Trailers of California, Inc. ("Robertson") (2006) 144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Id. at pp. 817-818.)

"The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court." (Id. at p. 822.)

"[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]" (Robertson, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and

(3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Id. at p. 819.) However, a trial court is “not required to apply a multiplier.” (Id. at p. 822, original italics.)

IV.

DISCUSSION

Plaintiffs

move for an order awarding Plaintiffs attorneys’ fees in the sum of \$21,021.88. (Motion p. 21.) This reflects \$13,617.50 in attorneys’ fees, a 1.25 multiplier enhancement increasing the award by \$3,404.38, and an additional \$4,000.00 in fees for reviewing the opposition, drafting the reply, and attending the Motion’s hearing. (Motion p. 21.)

Hourly

Rates:

Plaintiff’s

counsels and supporting staff billed at rates ranging from \$175.00 per hour to \$600.00 per hour. (Motion p. 15.)

In

opposition, Defendant argues Plaintiffs’ counsels’ hourly rates are excessive. (Opposition pp. 13-14.)

Plaintiffs’

counsel, Kevin Jacobson, submits a declaration discussing counsels’ and counsels’ supporting staff’s relevant experience, except for Nima Elie and Collin Woolheater. (Jacobson Declaration ¶¶ 3-5, 47-64; Motion p. 15.)

The court finds the

requested hourly rates are reasonable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.]

Time

Billed:

Plaintiffs'

counsels and supporting staff billed 31.10 hours on this matter, excluding time billed relating to the opposition, the reply, and the Motion's hearing. (Jacobson Declaration Ex. 41 pdf p. 265.)

In

opposition, Defendant the Motion "attributes to many tasks reflects what counsel believes the 'value' of that task should be, not the actual time spent", counsels should not recover time anticipated to be billed, and counsels improperly block billed. (Opposition pp. 9-12.)

The

court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a lack

of efficiency in litigating the case and a lack of clarity in tasks performed."

(See Mikhaeilpoor v. BMW of North America, LLC (2020) 48

Cal.App.5th 240 256 ["Further, counsel's billing entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed.

This evidence supports the trial court's finding that plaintiff's counsel failed to act efficiently."]) Plaintiff's counsels are experienced in this area of the law. Thus, the court will adjust the reflected time to reflect the court's understanding that the time billed should reflect Plaintiffs' counsels' expertise.

Date

Task

Hours Requested

Adjusted Hours

Hourly Rate

06/09/26

Review/Analyze: case

file in order to draft Motion for Attorneys' Fees, Declaration in Support of Motion, and Proposed Order Granting Motion

0.40

0.00

\$395.00

06/09/26

Draft/Revise:

Proposed Order Granting Motion for Attorneys' Fees

0.20

0.10

\$395.00

06/09/26

Draft/Revise:

Declaration in Support of Motion for Attorneys' Fees

2.60

0.30

\$395.00

06/10/26

Draft/Revise: Motion

for Attorneys' Fees

2.50

1.00

\$395.00

-

Review and analyze

Defendant's Opposition to Plaintiffs' Motion for Attorneys' Fees

1.10

0.80

\$495.00

-

Review and analyze

Declaration of Natalie Cabibi and review corresponding exhibits

0.70

0.20

\$495.00

-

Draft Declaration of

Kevin Jacobson in Support of Reply Brief in Support of Motion for Attorneys'
Fees

0.20

0.10

\$495.00

-

Draft Plaintiffs'

Reply Brief in Support of Motion for Attorneys' Fees–

2.90

1.00

\$495.00

-

Prepare for and
attend the hearing on Plaintiffs' Motion for Attorneys' Fees

2.0

1.00

\$495.00

(Jacobson
Declaration Ex. 41 pdf pp. 252-265.) Jacobson Reply Declaration ¶ 5.)

The
adjustments above reflect a reduction of \$3,184.50 reduction in the requested
fees.

The
court finds the reasonable number of hours expended on this matter was 30.9
hours, at the requested hourly rates.

Lodestar
Multiplier:

Plaintiffs
request a 1.25 lodestar multiplier. (Motion p. 21.)

The court understands
that litigating Song-Beverly actions requires technical expertise. But "a
trial court should award a multiplier for exceptional representation only when
the quality of representation far exceeds the quality of representation that
would have been provided by an attorney of comparable skill and experience
billing at the hourly rate used in the lodestar calculation. Otherwise, the fee
award will result in unfair double counting and be unreasonable." (Ketchum
v. Moses (2001) 24 Cal.4th 1122, 1139.)

Here, Plaintiffs' counsels displayed the skill, proficiency, and technical expertise commensurate with counsels' experience and specialty. Nothing before the court indicates Plaintiffs' counsels' representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels' rates.

Accordingly, the court denies Plaintiffs' request for an enhancement.

V.

CONCLUSION

For the foregoing reasons, the request for attorneys' fees is granted in the reduced sum of \$13,848.50, to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this order.

Dated: July 27,
2026 _____ Hon. Eric Harmon

Judge of the Superior Court